

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

JON STERLING NEWSOM, Respondent

Agency Case No. 2-466069248

OAH No. 2024110017

PROPOSED DECISION

Brian Weisel, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, heard this matter on April 30 through May 1, 2025, via videoconference from Sacramento, California.

Steve J. Pyun, Deputy Attorney General, represented Mary Vixie Sandy, Ed.D. (complainant), Executive Director of the California Commission on Teacher Credentialing (Commission).

Joshua F. Richtel, Attorney at Law, represented respondent Jon Sterling Newsom, who was present throughout the hearing.

Evidence was received, the record closed, and the matter submitted for decision on May 1, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On May 25, 2017, the Commission issued respondent a Clear Single Subject Teaching Credential. The credential is scheduled to expire on June 1, 2027, unless renewed. On November 1, 2018, the Commission issued respondent a Clear Career Technical Educational Teaching Credential. The credential is scheduled to expire on December 1, 2028, unless renewed.

2. On February 19, 2014, the Commission issued respondent an Emergency 30-Day Substitute Teaching Permit. The permit expired March 1, 2015. On February 25, 2013, the Commission issued respondent a Waiver 30-Day Substitute Teaching Permit. The permit expired February 24, 2014.

3. On July 7, 2015, the Commission issued respondent a Single Subject Teaching Credential. The credential expired August 1, 2020. On October 13, 2015, the Commission issued respondent a Preliminary Career Technical Educational Teaching Credential. The credential expired on November 1, 2018.

4. On June 3, 2024, complaint, acting solely in her official capacity, signed and thereafter filed an Accusation seeking to discipline respondent's credentials and authorizations. Complainant alleged respondent made several inappropriate contacts with student A.G. in 2022. (Student A.G.'s name is withheld to protect her privacy. All other students mentioned in the Accusation testified and did not request their names be withheld). Complainant further alleged that those contacts constitute unprofessional conduct, immoral conduct, acts involving moral turpitude, and evidence of his unfitness for service.

5. Respondent timely filed a Notice of Defense to the Accusation. The matter was set for an evidentiary hearing before an ALJ of OAH, pursuant to Education Code section 44246 and Government Code section 11500 et seq.

Complainant's Evidence

DR. ANDREW BUKOSKY'S TESTIMONY

6. Andrew Bukosky, Ed.D., is the Assistant Superintendent of Human Resources at Porterville Unified School District (PUSD). In February of 2022, Dr. Bukosky learned of allegations from four students from Porterville High School (PHS) stating respondent had inappropriate contact with student A.G. Dr. Bukosky started an investigation with the help of the principal of PHS, Jose Valdez. Dr. Bukosky informed respondent he would be on administrative leave during the investigation.

7. Dr. Bukosky reviewed written statements from the students, which were admitted as administrative hearsay pursuant to Government Code section 11513, subdivision (d). The statements collectively stated that respondent spent a disproportionate amount of his time and attention talking to student A.G. at the back of his classroom and in between periods outside his classroom door. Multiple students observed respondent sitting very close to student A.G. as they spoke. At times their legs would touch. A.G. also touched respondent's arm or moved the hair out of respondent's face. During the times respondent talked with A.G., other students were ignored. The students felt uncomfortable by respondent's conduct.

8. PUSD staff informed local police of the alleged misconduct. Dr. Bukosky was aware the police questioned several students, including A.G. He is not aware of any criminal charges after the initial investigation. The police investigation and report were not offered into evidence.

9. Dr. Bukosky conducted an informal meeting with respondent to discuss the results of the investigation. With Mr. Valdez, Dr. Bukosky alerted respondent of the allegations. At that time, respondent was not formally disciplined. Dr. Bukosky and Mr. Valdez “strongly suggested” that respondent cease any inappropriate interactions with students. Respondent returned to work. His administrative leave lasted a few days.

10. In the fall of 2022, Dr. Bukosky learned of another incident involving respondent and inappropriate contact with A.G. On October 21, 2022, PHS teacher Sarai Bravo informed PHS staff that she witnessed respondent give A.G. a hug outside his classroom after the late bell to return to class. Respondent may have also kissed A.G. on the forehead, though Ms. Bravo was not sure. She provided a written statement to PUSD administration the same day.

11. On October 24, 2022, Dr. Bukosky scheduled another meeting with respondent. Dr. Bukosky informed respondent of Ms. Bravo’s allegation and placed respondent on leave effective the next day while they conducted a second investigation. At that meeting, respondent denied touching A.G.

12. On November 7, 2022, respondent attended another meeting with PUSD administration. Dr. Bukosky notified respondent that PUSD possessed a video showing respondent giving A.G. a hug and something that “looked like a kiss.” Respondent admitted he gave A.G. “a side hug” but denied ever kissing her.

13. On November 14, 2022, PUSD formally disciplined respondent for violations of school policy related to his inappropriate contacts with A.G. PUSD issued a letter of reprimand and suspended respondent for 12 days. PUSD sent the notices of discipline to the Commission.

14. Respondent returned to work after his suspension. He continues to work at PHS. He has not been formally disciplined again since his suspension in November of 2022. Dr. Bukosky is not aware of respondent contacting A.G. outside of school or behind closed doors while at school.

HANNAH MCCOY'S TESTIMONY

15. Hannah McCoy is a student at California Polytechnic State University, San Luis Obispo. She graduated from PHS in 2023. Ms. McCoy attended respondent's history class during Ms. McCoy's junior year.

16. Ms. McCoy was part of the "Pathways" program. In the program, students attended courses that doubled as college credit. Most of the courses were in the same wing of the school. Each of the Pathways classes were physically near each other.

17. In respondent's history class, guest lecturers from Porterville College provided most instruction after the first few weeks. When someone else gave the day's lecture, respondent "proctored" from his desk in the back of the room. The classes had significant down time without direct instruction. During those times, students would do their work independently, talk to respondent, or go to other nearby classes in the Pathways program to talk to other teachers or students.

18. In February and March of 2022, Ms. McCoy witnessed some "questionable behavior" by respondent. The school hosted a domestic violence awareness event in the campus "quad" common area. Multiple students and teachers walked around the quad to various booths related to the event. Ms. McCoy and her friends saw respondent and A.G. walking among the exhibits together and "talking low" to one another. One of the booths handed out pins. Ms. McCoy stated that respondent and A.G. placed the pins on each other.

19. Most days, respondent would talk with student A.G. in the back area of the class near his desk, even when A.G. did not have respondent's class that period. A.G. frequently came over to talk to respondent during down time in her own class nearby. Ms. McCoy observed respondent and A.G. sitting with their legs very close together and sometimes touching. In one instance, Ms. McCoy saw A.G. run a closed pen across respondent's knee. Ms. McCoy felt it was distracting. She also felt that respondent ignored other students when he talked with A.G.

20. Ms. McCoy took three photographs with her phone of A.G. and respondent sitting close together at the back of the class by respondent's desk. In the photos, respondent and A.G. are sitting facing the same direction with their knees touching or nearly touching. A.G. is holding a closed pen on respondent's knee while both are smiling.

21. Ms. McCoy discussed her concerns with other students in her class. She confided in her swim coach for advice. Ms. McCoy concluded it was best to report the incidents to school administration. She and her friends reported what they saw and gave their written statements. Ms. McCoy also gave a statement to police officers consistent with her written statement to PUSD.

TESTIMONY OF OTHER PRIOR STUDENTS

22. Antonio Arellano took respondent's class for the fall of the 2021-2022 school year. He was not in respondent's class that spring. He noticed respondent and A.G. touching hands, arms, and faces or drawing on each other's hands with a pen in the back of the classroom. He found the behavior "odd."

23. Mr. Arellano considered respondent a good teacher. He called respondent "wise." Respondent helped Mr. Arellano with financial tips as a soon-to-be

young adult. Respondent wrote a letter of recommendation on behalf of Mr. Arellano to help him get into college the year after these incidents.

24. Chanelle Millan graduated from PHS in 2023. She did not take respondent's class. She did spend time in his class during lunchtime or breaks between periods. Ms. Millan saw respondent during the domestic violence event at the school quad. She observed respondent walking and whispering with A.G. Ms. Millan saw respondent place a pin on respondent's sweater and whisper something. She did not hear what they were saying to each other. Ms. Millan stated that gossip circulated at the school about respondent and A.G. for months related to the time they spent talking with each other.

25. Kymberly Rojas also graduated from PHS in 2023. Respondent taught Ms. Rojas's junior year history class. That class was not proctored like the Pathways college credit courses. Respondent taught the entire class himself. A.G. was not in Ms. Rojas's history class. A.G. would often come into respondent's class during downtimes in her other classes and talk with respondent at the back of the class near respondent's desk. Ms. Rojas also saw respondent and A.G.'s legs touching while they were talking. Ms. Rojas observed A.G. waiting outside respondent's classroom to speak with him between periods frequently. Ms. Rojas stated that gossip about A.G. and respondent began circulating. After that began, respondent became more strict about students spending time in his class. Respondent stopped allowing students to "hang out" in his class during lunch or break periods.

SARAI BRAVO'S TESTIMONY

26. Sarai Bravo teaches civics at PHS. She is the chair of the social science department. She met respondent when she started at PHS in 2017. They have frequent

contact as they both teach in the same department. She reports no conflicts with respondent personally or professionally.

27. Ms. Bravo was aware of general gossip about respondent and A.G. starting in February of 2022. She paid little attention to it as students often gossip. She had no reason to believe respondent engaged in any inappropriate conduct at that point.

28. On October 21, 2022, Ms. Bravo walked in the courtyard shortly after the bell to return to class for seventh period and observed respondent give a “side hug” to A.G. outside his classroom. She also saw respondent bend down. Ms. Bravo believed respondent may have kissed A.G. on the forehead. Ms. Bravo was not certain if he did kiss her. She still was “in complete shock.” She notified the principal’s office and wrote a statement to memorialize what she saw. Ms. Bravo later gave a similar statement to a police officer.

29. Ms. Bravo asked administration if there was a video in the courtyard that captured the contact. At that time, staff told Ms. Bravo there was no video recording. At hearing, Ms. Bravo learned there was in fact a video recording of the incident. She viewed the video and confirmed that the two figures in the video were respondent and A.G. The video is very grainy and fuzzy. It is not possible to tell what exactly either person is doing in the recording. After viewing the video, Ms. Bravo again stated she was not sure if respondent kissed A.G.’s forehead. She was sure respondent gave A.G. a side hug.

JOSE VALDEZ’S TESTIMONY

30. Jose Valdez is the principal at PHS, where he has served for the last eight years. He conducted the March 2022 investigation into respondent’s conduct

regarding A.G. He asked the students to write statements describing what they observed and why they believed it was inappropriate. He ultimately concluded that respondent's behavior was "close to infringing on professional boundaries [expected] of teachers." He also noted that because of the attention he gave A.G., respondent ignored other students in his classes. Respondent's behavior made some students uncomfortable.

31. Mr. Valdez spoke with Ms. Bravo the day she reported the side hug and possible kiss outside respondent's class in October of 2022. Mr. Valdez then met with respondent regarding those allegations. Mr. Valdez reminded respondent he should not have any contact with A.G. that could be seen as inappropriate or unprofessional. Mr. Valdez also suggested respondent stop allowing students to congregate in his class at lunch or between periods. Respondent denied any inappropriate contact with A.G.

32. After completing their second investigation, PUSD disciplined respondent and suspended him for 12 days. A.G. also finished the school year studying at home. During the suspension, respondent emailed Mr. Valdez asking for clarification about what contact was appropriate with A.G. Mr. Valdez was surprised that he needed to instruct respondent what contact was appropriate. Mr. Valdez stated he told respondent not to contact A.G. during one of his meetings. He did not provide that instruction in any written directive.

33. Mr. Valdez stated that all staff complete an online training course module to learn about appropriate boundaries, requirements of a mandated reporter, and student and teacher safety, among other topics. Respondent completed this course during his onboarding at PHS. Mr. Valdez stated that from that course, respondent should have known his contact crossed a line without further instruction.

34. In March of 2023, Mr. Valdez learned respondent talked with A.G. again in the courtyard. Mr. Valdez reminded respondent in a meeting on March 24, 2023, that the “optics” of his conversations with A.G. were problematic. Mr. Valdez summarized the meeting in a subsequent email to respondent. Mr. Valdez told respondent speaking with A.G. outside the class “wasn’t a good idea” because of prior issues. Respondent told Mr. Valdez that A.G. was experiencing personal issues at home, and he was providing her support. In the email, Mr. Valdez told respondent he was “not in any trouble.” After the meeting, respondent agreed to stop communicating with A.G. entirely. Mr. Valdez is not aware of any contact since that time. Respondent has had no discipline subsequent to his October 2022 suspension. He continues to teach at PHS today.

Respondent’s Evidence

RESPONDENT’S TESTIMONY

35. Respondent worked in various jobs before becoming a teacher. He sold cars and real estate for a time in Bakersfield, California. After having a child, he sought employment closer to home with a better work-life balance. His parents were both teachers. Respondent decided to obtain his master’s degree in education and apply for his teaching credential. Because of his prior background, respondent sought credentials to teach multiple subjects to help students who need direction after graduation. He has taught courses in finance, industrial arts, marketing, and history.

36. Respondent enjoys PHS’s Pathways program. He advises students on finance and career skills to help them prepare for adulthood. He encourages students to obtain skills for gainful employment. Many of the classes in Pathways are dual enrollment with Porterville College. In respondent’s history class, this includes

respondent teaching the first few and last few weeks of the course. College lecturers teach the remainder. When he is not the lecturer for a subject, respondent proctors the course and helps students with questions or homework from the back of the classroom near his desk.

37. Many of the Pathways classrooms were in the same location in a pod together. These Pathways classes contained significant time without an active lecture. During those times students from his class and other classes traveled to other nearby classrooms to talk with other teachers or other students or complete their work. The students were at times "stir crazy" and would "wander from here to there."

38. A.G. frequently came to respondent's room during off time from her other classes. Approximately six to eight other students also came to respondent's classroom to talk to him during downtimes of other classes.

39. In March of 2022, Dr. Bukosky and Mr. Valdez met with respondent regarding allegations of inappropriate contact with A.G. The district placed respondent on administrative leave for a few days while they conducted their investigation. Respondent was not formally disciplined at that time. Respondent stated he was not told to not contact A.G. at all at that time. He was, however, directed to cease inappropriate contact with A.G. After the investigation, respondent decided to no longer allow students to congregate in his class during lunch or other breaks. Instead, respondent would stay outside the door of his classroom in the courtyard between periods. Some students, including A.G., would talk with respondent as he stood outside his classroom door.

40. On October 21, 2022, A.G. and another student came up to talk to respondent between sixth and seventh periods. The bell rang to return to class.

Respondent did not have a seventh period class. That was his scheduled preparation hour. A.G. also did not have a seventh period class. Her school day was complete after sixth period. Respondent could tell A.G. was upset about something. He asked but she did not say what was bothering her. Respondent asked if she was all right. She shook her head to indicate no. She did not elaborate further.

41. Respondent did not know what to do. He could tell A.G. was about to cry. Respondent did a “stupid thing” trying to comfort A.G. in the moment and gave A.G. a hug and a pat on her back for a few seconds. Respondent stated he did not kiss A.G.’s forehead. Respondent is approximately one foot taller than A.G. He leaned down as a part of the hugging motion. A.G. then turned around and walked away.

42. At the November 2022 meeting, PUSD informed respondent of his formal reprimand and 12-day suspension. Union representative Ryan Uphoff was also present. Dr. Bukosky and Mr. Valdez asked respondent if he kissed A.G., which he denied. They told him they had a video of the incident, but that it was “grainy.” Respondent stated he was never told that he could not have any contact with A.G. Mr. Valdez directed respondent to keep his contact appropriate and professional. Respondent considered those directives “vague.”

43. Respondent’s contact with A.G. decreased after the October 2022 incident. Respondent spoke with A.G. “maybe three or four times” afterwards. He told A.G. he was sorry and encouraged her to keep working toward college and a career. He ceased all contact after March of 2023.

44. Respondent discussed the photographs of him and A.G. sitting close together at the back of his class. He does not believe his legs ever touched A.G. At the time, he did not consider any of the contact inappropriate. He did not believe he

allowed A.G. to draw on him as he dresses in nice clothing at school that he would not want ruined. He never had contact with A.G. behind closed doors or outside of school.

45. Respondent described the domestic violence awareness day in the quad. He did talk to A.G. He also talked with several other students throughout the event. Three to four full classes were in the quad at any given time. Respondent stated he did not say anything inappropriate to A.G. or anyone else. The event was loud with some people talking on speakers. He spoke close and low to people at the event to be heard over the loudspeaker. Respondent remembered people handed out pins at the event. Respondent does not remember placing a pin on A.G. or her placing one on him.

46. Respondent stated he did talk to A.G. more than other students. She experienced some personal problems at home. A.G. spoke with respondent about her personal issues at times. Respondent encouraged A.G. to continue her education so she could "get out" of Porterville and provide a stable life for herself as an adult. Respondent tried to help all his students and "meet them on a personal level." Respondent stated he understands the optics of allowing A.G. to sit so close to him and spend so much time with him were problematic. Respondent stated he would not allow that close of contact again.

RYAN UPHOFF'S TESTIMONY

47. Ryan Uphoff is the athletic director of Strathmore High School in the PUSD. Previously, he was president of the union for all certificated teachers at PUSD. In October of 2022, PUSD contacted Mr. Uphoff to notify him of possible adverse action related to respondent's employment. Mr. Uphoff attended the two meetings in October and November 2022 related to PUSD's investigation.

48. Mr. Uphoff did not know respondent prior to the investigation. Mr. Uphoff is aware some rumors have circulated regarding respondent's inappropriate contact with one or more students. Mr. Uphoff did not recall the specifics of the meeting. He did recall that respondent denied ever touching A.G.

ANTHONY WHITTON'S TESTIMONY

49. Anthony Whitton is a freshman at Porterville College. He graduated from Porterville High School in May of 2024. Mr. Whitton took respondent's class in the 2022-2023 school year for history.

50. Mr. Whitton testified that respondent stood outside his classroom between periods frequently. Respondent's classroom was a common "hangout" for students between periods or when there was downtime at other classrooms in the Pathways program.

51. Mr. Whitton would travel to respondent's class during downtime of other classes. He would speak with respondent in the back of the classroom. They would discuss both school-related and personal topics.

52. Mr. Whitton viewed respondent as a mentor. He characterized respondent as "honest" and "highly respected." Mr. Whitton sought respondent's guidance on whether to attend college and tips for financial success as an adult. When Mr. Whitton graduated, respondent hugged him and congratulated him. Mr. Whitton did not consider the contact inappropriate.

53. Mr. Whitton did not hear general gossip about respondent during 2022 or otherwise. Mr. Whitton witnessed respondent outside his classroom door with A.G. during break once. A.G. was waiting at respondent's door to talk to him. Mr. Whitton

did not hear what they were saying. He did not see anything inappropriate outside respondent's classroom door.

Analysis

UNPROFESSIONAL CONDUCT

54. Complainant proved by clear and convincing evidence that respondent's actions considered together were unprofessional. Multiple witnesses credibly provided consistent accounts of respondent sitting too close to A.G. He touched or allowed himself to be touched by A.G. on the arm, face, or leg in ways that warranted concern. Respondent and A.G. placed pins on each other. Respondent's claim he did not remember if they did place pins on each other was not credible. Respondent whispered and joked with student A.G. He gave her disproportionate attention beyond that necessary in a student-teacher relationship. At least some of these contacts occurred when A.G. was not even a student in that period.

55. There is no dispute respondent hugged A.G. in the courtyard. A hug may not necessarily be inappropriate in some circumstances, such as at Mr. Whitton's graduation ceremony. However, respondent's numerous other unprofessional contacts with A.G. indicate the hug was more than what is required of a supportive teacher.

56. The evidence did not support a finding that respondent kissed A.G. The video is of such poor quality nothing can be discerned of it. Ms. Bravo admitted she was not sure if she saw a kiss. The other inappropriate contacts above, however, were unprofessional.

57. Respondent's multiple unprofessional contacts with A.G. continued to cross the teacher-student boundary. Respondent took his attention away from his other students and created a distraction and an uncomfortable learning environment.

OTHER CAUSES FOR DISCIPLINE

58. Complainant did not prove by clear and convincing evidence that respondent's actions constituted moral turpitude. "Moral turpitude" has been defined as "everything done contrary to justice, honesty, modesty or good morals." (*Rice v. Alcoholic Beverage Appeals Bd.* (1979) 89 Cal.App.3d 30, 36.) An act involves moral turpitude if it involves a serious breach of a duty owed to another or to society. (*In re Stuart K. Lesansky* (2001) 25 Cal.4th 11, 16.)

59. Though multiple witnesses discussed giving statements to the police, there is no police report in evidence. The findings of police officers were not offered and are not considered. A.G. did not testify. There is no evidence of text message exchanges or phone calls or any contact between respondent and A.G. outside of school. Every act of unprofessional contact occurred either in respondent's class in front of other students or in the public courtyard. Respondent's actions were inappropriate and unprofessional. However, little evidence was presented to support the conclusion that respondent's actions rose to the level of moral turpitude. Moral turpitude is conduct that is much more serious than just inappropriate or unprofessional. The evidence presented at hearing does not support a finding that respondent acted contrary to justice, honesty, modesty, or good morals.

60. Further, complainant did not prove by clear and convincing evidence respondent is unfit for service. "Evident unfitness for service" means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of

temperamental defects or inadequacies. (*Woodland Joint Unified School Dist. v. Com. on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

61. No evidence was presented that respondent possesses some fixed character trait that is not remediable. The evidence indicates the opposite. After respondent's district discipline in October of 2022, his contact with A.G. decreased from near daily communication to three or four times ever again. He continues to teach at PHS with no formal discipline after the incident. He changed his behavior at school both by closing his classroom during breaks and ending his practice of being too familiar with students. Notably, Mr. Arellano sought respondent's recommendation letter for college a year after the incidents with student A.G. He credibly testified that respondent was a good teacher that provided mentorship to students. Mr. Whitton similarly testified about respondent's influence helping him attend college and become a young adult.

62. Finally, complainant did not prove by clear and convincing evidence that respondent's conduct was immoral. The term "immoral" has been defined generally as "that which is hostile to the welfare of the general public and contrary to good morals. . . . [It] includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Bd. of Ed. of San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811.) As

discussed above, respondent's conduct was unprofessional. Complainant provided no evidence why that conduct is depraved, flagrant, or shameless.

FITNESS TO TEACH

63. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 235 (*Morrison*), the California Supreme Court held that "an individual can be removed from the teaching profession only upon a showing that his retention in the profession poses a significant danger of harm to either students, school employees, or others who might be affected by his actions as a teacher." The court concluded that a teacher's conduct cannot abstractly be characterized as "immoral," "unprofessional," or "involving moral turpitude" unless the conduct indicated that a teacher is unfit to teach. (*Id.* at p. 229.)

64. The Court outlined factors to consider when determining whether an educator's conduct demonstrates unfitness to teach, which have been codified in California Code of Regulations, title 5, section 80302, subdivision (a). The criteria are as follows: (1) the likelihood of adverse effects on students, fellow teachers, or the educational community; (2) the proximity or remoteness in time of the misconduct; (3) the type of credential held by respondent; (4) extenuating or aggravating circumstances; (5) praiseworthiness or blameworthiness of motives; (6) likelihood of recurrence; (7) the extent to which disciplinary action may chill or have an adverse impact upon the exercise of constitutional rights among teachers or other persons involved; and (8) the publicity or notoriety of respondent's misconduct.

65. In evaluating the *Morrison* factors, only the pertinent factors need to be analyzed. (*Broney v. California Com. on Teacher Credentialing* (2010) 108 Cal.App.4th 462, 476.) In addition, the reviewing body is not bound by "rigid procedure." Rather, it

may apply the *Morrison* factors in the aggregate, and consider the totality of a teacher's offensive conduct. (*Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1457 [Commission does not have to show that "every charge in the series would independently justify" adverse action].)

66. Considering the relevant *Morrison* factors, respondent's conduct had an adverse effect on multiple students at PHS. He ignored other students when he spent considerable time and attention away from his class to talk with A.G. At times, A.G. was not even a student in that period. Respondent's misconduct occurred in 2022, which is recent. Respondent credibly described his motive to help a student enduring a difficult personal time. Though his contact was excessive and unprofessional, there is nothing particularly blameworthy regarding his motives. Respondent is not likely to reoffend. Once the district disciplined respondent, he significantly decreased and later ceased all contact with A.G. He has not been disciplined again by PUSD. He continues to teach at PHS. At least one student reported respondent as mentor and a role model in the year after the allegations. Respondent's actions created modest publicity. The entire school gossiped about respondent's interactions with A.G. This made the learning environment uncomfortable for at least some students. There is no evidence disciplining respondent's credentials would have an adverse impact on the constitutional rights of others.

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

67. The Commission's regulations define "aggravating factor" as "an event or circumstance which demonstrates that a greater degree of adverse action for an act of professional misconduct is needed to adequately protect the public, schoolchildren or the profession." (Cal. Code Regs., tit. 5, § 80300, subd. (b).) The definition includes six examples: (1) a prior record of adverse action including the nature and extent of that

record; (2) that the misconduct evidences multiple acts of wrongdoing or demonstrate a pattern of misconduct; (3) that the misconduct was surrounded by or followed by bad faith, dishonesty or other violation of the laws governing educators; (4) that the misconduct significantly harmed a child entrusted to the care of a credential holder or applicant, significantly harmed the public or the educational system; (5) that the holder or applicant demonstrated indifference toward the consequence of the misconduct, which includes failure to comply with known court orders; or (6) that the holder or applicant had prior notice, warnings or reprimands for similar conduct from any reliable source.

68. The regulations define "mitigating factor" as "an event or circumstance which demonstrates that the public, schoolchildren and the profession would be adequately protected by a more lenient degree of adverse action or no adverse action whatsoever." (Cal. Code Regs., tit. 5, § 80300, subd. (m).) The definition includes seven examples: (1) absence of any prior record of adverse action over many years of educational service, coupled with present misconduct which is not deemed most serious; (2) lack of harm to the person who is the object of the misconduct; (3) emotional or physical difficulties suffered by the holder or applicant which substantially contributed to the misconduct; provided that the difficulties were not the product of illegal conduct by the credential holder or applicant, such as illegal drug or substance abuse; and further provided that the credential holder or applicant has established through clear and convincing evidence that he or she no longer has such difficulties; (4) a demonstration of good character of the applicant or holder attested to by references from the educational community or the general community from individuals aware of the extent of the applicant's or holder's misconduct; (5) objective action taken by the applicant or holder, spontaneously demonstrating remorse at the time of the misconduct, and recognition of the wrongdoing which is designed to

timely make amends for the consequences of the misconduct; (6) the proximity or remoteness in time relative to the seriousness of the misconduct; or (7) the nature and extent of subsequent rehabilitation.

69. Here, the evidence established that respondent engaged in multiple acts of wrongdoing. His conduct is relatively recent. Respondent was warned to keep his conduct professional in March of 2022 before hugging A.G. in October of 2022. Since that time, there is no evidence of further unprofessional contact with A.G. There is no evidence respondent acted in bad faith or significantly harmed A.G., the public, or the educational system. Respondent was disciplined by PUSD for the same conduct. He has no prior discipline with the Commission in approximately ten years. A former student credibly testified that respondent was a mentor and a competent teacher during and after the misconduct.

APPROPRIATE DISCIPLINE

70. When all the *Morrison* factors and the aggravating and mitigating factors are considered, revocation or a lengthy suspension of respondent's credential are not warranted to protect the public. Respondent violated a series of teacher-student boundaries. However, there is no evidence respondent harmed A.G. There is no evidence of any inappropriate contact other than conversations and brief public physical contact at school. Respondent should have understood the optics of his contacts sooner. Once he was formally disciplined for his misconduct, he significantly decreased and then ceased all contact with A.G. Respondent has continued to teach at PHS for over two years without further discipline.

71. Similarly, a short suspension would do little to protect students or the educational system as a whole. Respondent already served a 12-day suspension for his

unprofessional conduct. Though the Commission is not bound by the actions of a school district, suspending respondent's credential again for a similar amount of time would do little to ensure he does not reoffend. As stated above, respondent took the district's discipline seriously. He changed his behavior and returned to the classroom with a better understanding of appropriate behavior. Since that time, other students sought respondent out as a mentor, including one of the students that reported the misconduct.

72. The appropriate discipline then is to publicly reprove respondent's credentials. Such public reproof serves the interests of public protection because it will constitute an "adverse action" and thus can be considered as prior discipline in the event respondent engages in future misconduct. Furthermore, a public reproof balances the Commission's interest in regulating its credential holders with consideration of the mitigating factors present here.

LEGAL CONCLUSIONS

Burden of Proof

1. Complainant has the burden of proving cause for adverse action by clear and convincing evidence to a reasonable certainty. (*Ettinger v. Bd. of Medical Quality Assurance* (1982) 135 Cal.App.3d 583, 855–856.) Clear and convincing evidence requires proof that is so clear as to leave no substantial doubt and that is sufficiently strong to command the unhesitating assent of every reasonable mind. (*In re Marriage of Brooks* (2008) 169 Cal.App.4th 176, 190.)

Jurisdiction and Applicable Law

2. Pursuant to Education Code section 44000 et seq., and California Code of Regulations, title 5, commencing with section 80001, the Commission is responsible for credentialing teachers in public schools in California, including issuing credentials, and taking adverse action against applicants and credential holders.

3. Education Code section 44421 authorizes the Commission to take adverse action against an individual's teaching credential for, among other specified causes, unprofessional conduct, evident unfitness for service, immoral conduct, acts of moral turpitude, or for any cause that would warrant denial of an application for a credential. Section 44345, subdivision (e), allows the Commission to deny an application of one who has committed an act involving moral turpitude.

Causes for Discipline

4. The Commission may discipline a credential for unprofessional conduct. (Ed. Code, § 44421.) As discussed in the Factual Findings above, complainant proved by clear and convincing evidence that respondent engaged in unprofessional conduct when he spent an inappropriate amount of his time talking with and briefly touching student A.G. The volume and extent of his attention harmed the learning environment at PHS and made multiple students uncomfortable. Cause therefore exists to discipline respondent's credentials pursuant to Education Code section 44421.

5. The Commission may discipline a credential "for any cause that would have warranted the denial of an application for a credential or the renewal thereof." (Ed. Code, § 44421.) An application for a credential may be denied if the applicant "has committed any act involving moral turpitude." (Ed. Code, § 44345, subd. (e).) As discussed in the Factual Findings above, complainant did not prove by clear and

convincing evidence that respondent's conduct constituted moral turpitude. Cause therefore does not exist to discipline his credentials for committing an act involving moral turpitude pursuant to Education Code sections 44421 and 44345, subdivision (e).

6. The Commission may discipline a credential for immoral conduct. (Ed. Code, § 44421.) As discussed in the Factual Findings above, complainant did not prove by clear and convincing evidence that respondent's conduct was immoral. Cause therefore does not exist to discipline his credentials for immoral conduct pursuant to Education Code section 44421.

7. The Commission may discipline a credential based on the holder's evident unfitness for service. (Ed. Code, § 44421.) As discussed in the Factual Findings above, complainant did not prove by clear and convincing evidence that respondent demonstrated evident unfitness for service. Cause therefore does not exist to discipline his credentials for evident unfitness for service pursuant to Education Code section 44421.

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ORDER

Respondent Jon Sterling Newsom's Clear Single Subject Teaching Credential, Clear Career Technical Education Teaching Credential, Preliminary Single Subject Teaching Credential, Preliminary Career Technical Education Teaching Credential, Emergency 30-Day Substitute Teaching Permit, and Waiver 30-Day Substitute Teaching Permit are PUBLICLY REPROVED pursuant to Education Code section 44421.

DATE: May 28, 2025

Brian Weisel

[Brian Weisel \(May 28, 2025 13:43 PDT\)](#)

BRIAN WEISEL

Administrative Law Judge

Office of Administrative Hearings